

The court finds Plaintiff made adequate efforts to meet and confer before filing this motion. Plaintiff sent Defendant a detailed meet and confer letter explaining Plaintiff's position, to which Defendant responded with a firm statement that it would stand by its objections and refuse production.

Discoverable information is that reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) The court finds that the interrogatories at issue are not reasonably calculated to lead to the discovery of admissible evidence. Other residents of Defendant's care home generally are not reasonably likely to be material witnesses to the care Defendant provided to Plaintiff, much less their responsible parties. To Plaintiff's argument that the other residents may be witnesses to the general levels of staffing and training at Defendant's care home, such information is much more directly discovered by other means such as discovery of Defendant's training policies, staffing records, CDPH surveys and incident reports. Further, the staffing and training that other residents may have perceived as relevant to their situations and their particular care needs is not necessarily material to the staffing and training necessary to address Plaintiff's situation and meet her particular care needs.

Plaintiff's motion is denied.

CONSUELLA DEANNA WINDSOR vs. WILLIAM VENARD
Case No. CU25-09087

Motion by Plaintiff for Leave to File First Amended Complaint

TENTATIVE RULING

The unopposed motion is granted.

Plaintiff shall forthwith file and serve on all defendants the first amended complaint as proposed.

FERNANDO CRUZ CERDA; ET AL. vs. GENERAL MOTORS, LLC
Case No. CU25-10827

Motion to Strike Civil Penalties

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC moves to strike the prayer for civil penalties from Plaintiffs FERNANDO CRUZ CERDA and FEDERICO G HURTADO's complaint asserting causes of action for (1) violation of Civil Code section 1793.2, subdivision (d),

(2) violation of subdivision (b) of the same, (3) violation of subdivision (a)(3) of the same, (4) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, and (5) fraudulent inducement.

Notice of Tentative Ruling. Defendant's notice of motion does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Defendant is to observe local rules going forward.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Code of Civil Procedure section 871.24 states that at least thirty days prior to commencement of a civil action seeking civil penalties for violation of Civil Code section 1794 a consumer must notify the manufacturer in writing of the consumer's name, the relevant vehicle's vehicle identification number, and a brief history of the vehicle's repairs and problems. The consumer must also demand the manufacturer repurchase or replace the vehicle. Per section 871.24, subdivision (c) the consumer must also have possession of the vehicle at the time the notice is sent. Plaintiffs assert violation of Civil Code section 1794 as their fourth cause of action and seek civil penalties for such in their prayer (at subdivision "f"). However, Plaintiffs allege only that they demanded repurchase or replacement of the Vehicle by Defendant on October 31, 2025. (Complaint at ¶ 24.) They do not allege that they provided Defendant the vehicle's VIN or a summary of the Vehicle's repair history. Nor do they allege that they had possession of the vehicle at the time notice was sent. Most significantly they do not allege affording Defendant the proper thirty days as October 31, 2025 was only twenty-five days before the complaint was filed on November 25, 2025.

Plaintiffs did not obey Code of Civil Procedure section 871.24 and cannot seek civil penalties on their implied warranty claim.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) Policy favors liberal granting of leave to amend where there is no prejudice to the opposing party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) The court finds that the identified defects in Plaintiff's complaint are amenable to cure and there is no prejudice to Defendant in granting leave to amend

Conclusion. Defendant's motion to strike is granted with leave to amend. Plaintiff must file any amended complaint within twenty days of the date of this hearing.

RUBY EVANS vs. WINDSOR VALLEJO CARE; ET AL.
Case No. FCS055755

Motion to Tax Costs

TENTATIVE RULING

On the Court's own motion, the hearing on Defendants' motion to tax costs is continued to August 28, 2026 at 9:00 a.m. in Department Seven.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

+16692545252,,1611554664#,,,,*818575# US (San Jose)

+14154494000,,1611554664#,,,,*818575# US (US Spanish Line)

Dial by your location

+1 669 254 5252 US (San Jose)

+1 415 449 4000 US (US Spanish Line)

+1 669 216 1590 US (San Jose)

+1 551 285 1373 US (New Jersey)

+1 646 828 7666 US (New York)

+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free